

VCU331662 In the Matter of Jimmy L. Dreo and Charlotte L. Dreo 1996 Living Trust

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-06-30

Motion: Motion for Trial Preference

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Re: In the Matter of Jimmy L. Dreo and Charlotte L. Dreo 1996 Living Trust

Case No.: VCU331662

Date: June 30, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Trial Preference

Tentative Ruling: To continue this motion to July 14, 2026, 8:30 am, Dept. 2 and order a declaration in compliance with Code of Civil Procedure section 36(c)(1) as to service or appearance of all essential parties.

Facts

Petitioner Jimmy L. Dreo ("Corky") filed this petition for invalidation of power of attorney, successor trustee appointment, to invalidate trust amendment, for financial elder abuse, for breach of fiduciary duty, for orders determining title, for fraud, to compel an accounting, to prohibit use of trust funds and to revoke the trust, naming Ricky Lee Dreo, individually and as Successor Trustee of the Jimmy L. Dreo and Charlotte L. Dreo 1996 Living Trust; Pamela Lynn Dreo-Dotson, an individual and the Pamela Dreo Living Trust as Respondents.

On June 9, 2026, Corky filed this motion for trial preference pursuant to Code of Civil Procedure section 36(a). Further, Corky's declaration establishes he is 87 years old, is the surviving settler and trustee of the Jimmy L. Dreo and Charlotte L. Dreo 1996 Living Trust, is currently being treated by a physician for coronary artery disease, is at a risk of being incapacitated if trial preference is not granted. (Declaration of Corky ¶¶1-7; Ex – A – Letter from Physician.)

No opposition appears to have been filed.

Authority and Analysis

Pursuant to Code of Civil Procedure section 36(a), any party to a civil action who is over 70 years of age may "petition the court for a preference, which the court shall grant if the court makes both of the following findings:

"(1) The party has a substantial interest in the action as a whole;

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

The right to preference for litigants who qualify under Code of Civil Procedure § 36(a) is mandatory. (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 698-99; Rice v. Superior Court (1982) 136 Cal.App.3d 81, 86-87.) "The language of Section 36(a) was intended by the Legislature to be mandatory, and thus requires that a litigant qualifying under its terms be given preferential trial setting irrespective of the circumstances leading to the motion for preference." (Rice v. Superior Court (1982) 136 Cal.App.3d 81, 85.)

First, Corky is the Petitioner in this action and over the age 70, thereby giving Petitioner a substantial interest in this action before the court in compliance with Code of Civil Procedure section 36(a)(1).

There is no automatic preference based solely on age and the granting is conditioned on a finding of necessity under (a)(2). (Kline v. Superior Court (1991) 227 Cal.App.3d 512, 514.) The Court must consider "the party's health when determining whether preference is required, and considering whether the party's health necessitates the preference to avoid prejudice to the party." (Id.) Here, Corky's declaration and letter from the physician are sufficient to meet this element.

However, the declaration of Corky fails to indicate, pursuant to Code of Civil Procedure section 36(c)(1) "...that all essential parties have been served with process or have appeared."

Therefore, the Court continues this motion to July 14, 2026, 8:30 am, Dept. 2, given the that the other elements of preference are met, and orders a supplemental declaration as to the issue of service or appearance pursuant to subsection (c)(1).

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.